



Education (Northern Ireland) Act 1978

1978 CHAPTER 13

An Act to facilitate the establishment in Northern Ireland of schools likely to be attended by pupils of different religious affiliations or cultural traditions.

[25th May 1978]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) In order to facilitate the establishment of schools likely to be attended by pupils of different religious affiliations or cultural traditions, a school may, in accordance with the following provisions of this section, become a school (in this Act referred to as “a controlled integrated school”) the management committee of which is nominated in accordance with the provisions of Schedule 4A to the Education and Libraries (Northern Ireland) S.I. 1972/1263 Order 1972 (which Order as amended is in this Act referred to as (N.I. 12). “the principal Order”).

(2) Where not less than two-thirds of the persons appointed under paragraph 2(a) or 3(a) of Schedule 4 to the principal Order to the management committee of a controlled school as representatives of the transferors or superseded managers make a request to the education and libraries board (in this Act referred to as “the board”) responsible for the management of the school that the school should become a controlled integrated school, or that, where two or more schools are grouped under such a management committee, one or more of those schools should become a controlled integrated school or controlled integrated schools, the board shall proceed to ascertain the views of parents.

(3) Where the trustees of a voluntary school wish to transfer the school to the Department of Education for Northern Ireland (in this Act referred to as "the Department") under Article 14 of the principal Order and request that the school should become a controlled integrated school, the board for the area in which the school is situated shall ascertain the views of parents.

(4) Where a board is required under subsections (2) or (3) above to ascertain the views of parents, it shall do so in accordance with a scheme prepared by the board and approved by the Department and such a scheme shall in particular provide that parents of children attending the school in question shall be given an opportunity, so far as practicable in such a way that their identity is not revealed, to state whether they would be prepared to send their children to the school if it became a controlled integrated school.

(5) If the Department cannot approve a scheme prepared by a board, the parents' views shall be ascertained in accordance with a scheme prepared by the Department.

(6) Where a board has ascertained the views of parents in accordance with subsection (4), the board shall within such time as the Department may fix, send to the Department particulars of the information received from parents and the Department, after consultation with the board, shall, subject to subsection (7) below, determine whether or not the school shall become a controlled integrated school.

(7) The Department shall not, under subsection (6) above, determine that a school referred to in subsection (2) or (3) above should become a controlled integrated school unless satisfied that at least three-quarters of the parents of children attending that school whose views have been ascertained would be prepared to send their children to the school if it became a controlled integrated school.

(8) In Article 14 of the principal Order, in its application to a school which the Department determines under subsection (6) above shall become a controlled integrated school, for the words "controlled school" there shall be substituted the words "controlled integrated school".

(9) This section shall not apply to a controlled nursery school, controlled grammar school or controlled special school.

Management
of controlled
integrated
schools.

2.—(1) Where the Department determines under section 1 of this Act that a school shall become a controlled integrated school the board for the area in which the school is situated shall make

provision by means of a committee for the management of the school and accordingly—

- (a) in Article 8(1) of the principal Order, after sub-paragraph (a) there shall be inserted the following sub-paragraph—

“ (aa) controlled integrated school; ”

and after the words “ nursery schools ” where they first occur there shall be inserted the words “ or two or more controlled integrated schools ”; and

- (b) in Article 8(2) of the principal Order, after the words “ Schedule 4 ” there shall be inserted the words “ or, in the case of a controlled integrated school, Schedule 4A ”;
- (c) in Article 8(2A) of the principal Order (as inserted by the Education (Northern Ireland) Order 1976) after the words “ Schedule 4 ” where they first occur there shall be inserted the words “ or by paragraph 2(b), (c) and (d) of Schedule 4A ” and at the end there shall be added the words “ or, as the case may be, paragraph 2(a) of Schedule 4A ”.

(2) In Article 2(2) of the principal Order at the end of the definition of “ controlled school ” there shall be inserted the words “ other than a controlled integrated school ” and after that definition there shall be inserted the following definition:—

“ controlled integrated school ” has the meaning assigned to it by section 1(1) of the Education (Northern Ireland) Act 1978.

(3) After Schedule 4 of the principal Order there shall be inserted the Schedule contained in the Schedule to this Act.

3. Where the Department determines that a school shall become a controlled integrated school, the provisions of the principal Order shall apply to that school in like manner as they apply to a controlled school which is not a controlled integrated school. Supplementary provisions.

4.—(1) This Act may be cited as the Education (Northern Ireland) Act 1978. Short title, interpretation and extent.

(2) Any expression used in this Act and the principal Order shall, unless the context otherwise requires, have the same meaning in this Act as in that Order.

(3) This Act applies to Northern Ireland only.

Section 2.

SCHEDULE*Schedule to be inserted in principal Order***SCHEDULE 4A***Membership of School Management Committees of
controlled integrated schools*

1. A scheme under Article 8(2) shall so far as it relates to the appointment of school management committees of controlled integrated schools comply with the following provisions of this Schedule.

2. A scheme relating to the school management committee of one or more than one controlled integrated school shall ensure that—

- (a) one-third of the members of the committee shall be persons nominated at a meeting, or where two or more controlled integrated schools are grouped under one committee and the board so determines at a meeting in respect of each school, held in accordance with regulations made by the Department, by the parents of the pupils attending the school or schools and, where a board determines that a meeting shall be held in respect of each of two or more such schools, the board shall determine the number of persons to be nominated at each such meeting;
- (b) one-sixth of the members of the committee shall be appointed in accordance with regulations made by the Department as persons representative of the transferors and superseded managers of controlled schools in the area;
- (c) one-sixth of the members of the committee shall be appointed in accordance with regulations made by the Department as persons representative of nominating trustees of maintained schools in the area;
- (d) the remainder of the members of the committee shall be persons nominated by the board for the area in which the school is situated.

3. Regulations made under paragraph 2 shall ensure that at a meeting of parents held for the purpose of sub-paragraph (a) of that paragraph at which a vote is taken, the vote shall be by secret ballot and by the method of the single transferable vote.

4.—(1) Where a meeting of parents duly called, for the purposes of nominating persons under sub-paragraph (a) of paragraph 2 to the management committee of a school or schools, fails for want of a quorum or for any other reason or neglects or refuses to nominate any, or the requisite number of persons to represent parents on that committee, the board which controls the school or schools shall request that committee (which for the purposes of this paragraph shall be deemed to be duly constituted notwithstanding that all or any of the parents representatives have not been nominated) to submit to that board a list containing the names of twice the number of persons required to be nominated as parents' representatives or, if in the opinion of the board that is not practicable, such smaller number as the board with the approval of the Department may determine.

(2) Where, within one month of receiving a request from a board under sub-paragraph (1), a school management committee—

- (a) submits a list of names to the board in accordance with that request, the board shall select from that list the requisite number of persons to be nominated as parents' representatives on the school management committee;**
- (b) does not submit a list of names to the board in accordance with that request or submits fewer names than those required for nomination, the board shall, after taking into account the names of persons, if any, so submitted, select the requisite number of persons to be nominated as parents' representatives on the school management committee;**

and the persons so selected shall be deemed to have been duly nominated for the purposes of sub-paragraph (a) of paragraph 2.

5. In this Schedule "superseded managers" means the persons who were formerly managers of any schools which have been superseded by schools under the management of boards or, if those persons were recognised by the Department as such managers by virtue of any office, then, their successors in such office.